NSRA Title XXIX · Congressional Financial Integrity

# A Real Congressional Stock Trading Ban, Not Another Disclosure Rule

Title XXIX of the National Sovereignty and Resilience Act is a full ban on individual stock trading by members of Congress, senior executive branch officials, and federal judges. It requires divestiture, penalties that cost more than the trade could earn, and citizen enforcement.

## Why the STOCK Act was not enough

The 2012 STOCK Act requires disclosure but never banned the trades. Late filings are routine and the penalties are nominal. In 2026 the House passed a narrower bill that stops new purchases but lets members keep the stocks they already hold. Title XXIX closes that gap.

## What Title XXIX does

| Provision | Draft text |
|---|---|
| **Who is covered** | Members of Congress, Senate-confirmed and Executive Schedule I–V officials, federal judges and justices (Sec. 2902(a)) |
| **What is banned** | Trading or holding individual equities, corporate bonds, commodity and currency contracts, related derivatives, and non-transparent private funds |
| **Family members** | Officials may not direct a spouse, domestic partner, or minor child to make prohibited trades |
| **Still allowed** | Broad-based index funds and ETFs, Treasury securities, fixed annuities and pensions, qualified blind trusts (Sec. 2902(b)) |
| **Divestiture** | Within 180 days of enactment, or 90 days after taking office (Sec. 2903(a)) |
| **Civil penalties** | Full disgorgement, plus a penalty of twice the transaction value, an ethics referral, and public disclosure within 3 business days |
| **Criminal penalties** | Willful violations prosecuted as securities fraud under 18 U.S.C. § 1348 |
| **Citizen enforcement** | Private right of action in federal district court with fee-shifting (Sec. 2903(d)) |
| **Cost** | Budget-neutral; penalties fund an accountability account (Sec. 2904) |

## Built to stand alone

Title XXIX is self-contained. A member can introduce it as a stand-alone bill, offer it as an amendment, or campaign on it as part of the full 2028 cost-of-living agenda. Polling has consistently found broad public support across party lines for banning congressional stock trading.

*Read the operative text in the full bill (Title XXIX, Secs. 2901–2904).*

*Full text: theamericandeal.org/bill-text · This page: theamericandeal.org/stock-trading-ban · Contact: contact@theamericandeal.org · Fiscal figures are internal models, not CBO or JCT scores. Drafted by Santonio D. Sanders.*